

25STCV19487 25STCV19487

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Eric Chairez v. FCA US LLC, et al.

Tuesday, June

30, 2026

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO
COMPEL INITIAL DISCLOSURES AND FOR SANCTIONS OF \$2,500

This

action alleges violations of the Song-Beverly Consumer Warranty Act. Plaintiff
moves to compel Defendant to comply with statute and serve documents.

The

statute at issue requires both parties to disclose documents 60 days after the
answer or responsive pleading. (Code
Civ. Proc., § 871.26(b).) Defendant did not comply. (Breana Rucker decl., ¶4.)

The

motion was timely served on Defendant.

Defendant's opposition was untimely filed. Nevertheless, a trial court
retains discretion to consider late-filed papers in furtherance of resolving
matters on their merits. (Carlton v. Quint (2000) 77 Cal.App.4th 690,
697; Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765.) Trial
courts possess broad authority in the management of their calendars and in
determining whether consideration of untimely filings will assist in the just
resolution of a dispute. (Hobson v. Raychem Corp. (1999) 73 Cal.App.4th
614, 625.)

Exercising

that discretion, the Court has considered Defendant's opposition both on the merits of the motion and in determining whether monetary sanctions should be imposed.

Code of Civil Procedure section 871.26(b) provides

that "the parties" shall provide initial disclosures and documents pursuant to subdivisions (f), (g), and (h). Read as a whole, the statute imposes different disclosure obligations depending upon the party. Plaintiffs are required to provide the disclosures identified in subdivisions (f) and (g), while manufacturer defendants are required to provide the categories of documents identified in subdivision (h). Defendant's argument that it had no disclosure obligations under section 871.26 is inconsistent with the plain language of the statute because it would effectively read subdivision (h) out of the statutory scheme.

Plaintiff's

motion specifically seeks documents falling within subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13). The Court agrees that the complete warranty transaction history, including AutoPay and Trouble Not Found claims if they form part of that history, together with TSBs, ISBs, recalls, warranty policies and procedures, and service manuals, are categories expressly encompassed by section 871.26(h).

The

Court further concludes, however, that section 871.26(h) does not require production of every internal database, report, or electronic system that may contain information touching upon those categories. Accordingly, the Court declines to order production of a complete, unfiltered DealerCONNECT report or other internal databases except to the extent such materials themselves constitute or contain documents expressly required by section 871.26(h).

Defendant argues that Plaintiff seeks documents

beyond those expressly enumerated in section 871.26(h), such as internal databases and DealerCONNECT reports. The Court agrees that there may be legitimate disputes concerning whether certain internal reports and databases are themselves subject to mandatory disclosure under section 871.26(h). However, that dispute does not excuse Defendant's failure to timely provide documents expressly required by the statute, including warranty transaction

histories, TSBs, ISBs, recall information, warranty policies and procedures, and service manuals. A dispute regarding the outer boundaries of section 871.26(h) does not constitute good cause for noncompliance with categories that plainly fall within the statute.

The

Court therefore grants the motion to compel to the extent Plaintiff seeks documents expressly required by Code of Civil Procedure section 871.26(h)(6), (7), (8), (9), (10), (12), and (13), and otherwise denies the motion to the extent Plaintiff seeks production of internal databases, reports, or information not expressly encompassed by those subdivisions.

As to sanctions, the Court finds Defendant failed to demonstrate good cause for its failure to timely disclose categories of documents expressly required by section 871.26(h). Although there may be a legitimate dispute concerning whether certain internal databases and reports are subject to mandatory disclosure, Defendant's position as to those categories cannot be used to excuse its failure to comply with the statute's plainly enumerated disclosure obligations. Accordingly, monetary sanctions pursuant to Code of Civil Procedure section 871.26(j) are warranted.

Plaintiff's

motion to compel compliance with Code of Civil Procedure section 871.26 is GRANTED IN PART and DENIED IN PART.

Within 15 days, Defendant shall produce any documents required by Code of Civil Procedure section 871.26(h)(6), (7), (8), (9), (10), (12), and (13) that have not already been produced. The motion is denied to the extent it seeks production of internal databases, reports, or materials not expressly required by section 871.26(h). The court imposes sanctions of \$2,500 against Defendant's counsel, payable to Plaintiff within 15 days.